

purpose for which the immunity developed supports its limitation in the present case. As Professor Block has discussed in some detail,¹⁹ and as other scholars of the doctrine have also noted,²⁰ judicial immunity was founded as a result of the institution of appellate review. In order to discourage the older practice of challenging judgments by challenging the judge, and to enforce the new system, judicial immunity was developed.²¹ It was subsequently expanded by Lord Coke for the purpose of giving one type of rival court an advantage over another.²² In this context Lord Coke first enunciated the now familiar justification of independence of the judiciary, from the Star Chamber and, in fact, from all but "God and the King," further noting that without such immunity, "there will never be an end of causes" *Floyd v. Barker*, 77 Eng. Rep. 1305, 1306-07 (K.B. 1607).

This concern for "an end of causes," to be served by following the appellate system rather than circumventing it by suing the judge collaterally, is reflected in the holdings of this Court in *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335 (1882), and *Pierson v. Ray*, 386 U.S. 547 (1967). In both cases this Court noted the existence of alternative remedies for the aggrieved parties, and actually the parties in *Pierson* had already achieved correction of the unconstitutional convictions at the time they sought damages.²³ Thus, the original purpose for judicial immu-

¹⁹ Block, *Stump v. Sparkman and the History of Judicial Immunity*, 1980 DUKE L.J. 879.

²⁰ E.g., Feinman & Cohen, *Suing Judges: History and Theory*, 31 S.C.L. REV. 201 (1980); Way, *A Call for Limits to Judicial Immunity: Must Judges be Kings in their Courts*, 64 JUDICATURE 390 (1981).

²¹ Block, *supra*.

²² *Id.*

²³ For further discussion on this point, see pages 18-19, *supra*.